

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JOHN FANFAN and MARIE ISMENE FANFAN,

Plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY POLICE
DEPARTMENT 113th PRECINCT, N.Y.C. P.O. JOSEPH
PAGE and OTHER "JOHN DOES" OFFICERS AND
DETECTIVES OF AND AT THE 113th PCT WHOSE
NAMES AND IDENTITIES ARE PRESENTLY
UNKNOWN,

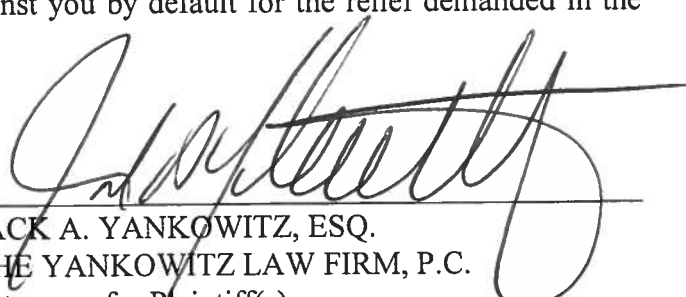
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
August 25, 2015



JACK A. YANKOWITZ, ESQ.
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff(s)
JOHN FANFAN AND MARIE ISMENE FANFAN
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 7975 -14

TO:

Index No.:
Date Purchased:
SUMMONS

Plaintiffs designate Queens
County as the place of trial.

The basis of venue is:
Plaintiffs' place of residence

Plaintiffs reside at:
134 -39 166th Place, Apt# 1B
Jamaica, NY 11434
County of Queens

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, NY 10013

THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT 113th PRECINCT

UNIDENTIFIED POLICE OFFICERS AND DETECTIVES OF THE 113TH PCT.

NYC P.O. JOSEPH PAGE (TAX REG. # 955288)

167-02 Baisley Boulevard

Jamaica, NY 11426

SUPREME COURT OF THE STATE OF NEW YORK
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Defendants.

Index No.:

Date Purchased:

VERIFIED COMPLAINT

-----X

Plaintiffs, by their attorneys **THE YANKOWITZ LAW FIRM, P.C.**, complaining of the
Defendants, respectfully allege, upon information and belief, as follows:

FACTS

1 Upon information and belief, on September 25, 2014 at approximately 9:35 PM while the Plaintiff, JOHN FANFAN was walking home from a friends house, at and/or near 137 Guy Brewer Blvd., Rochdale Village, Queens, New York. At said time, date and place, the Plaintiff, JOHN FANFAN, was falsely accused of stealing a car and other crimes by NYC P.O. JOSEPH PAGE and other unidentified NYC Police Officers and Detectives and he was arrested, handcuffed, placed into a police vehicle and taken to the 113th Pct. At said time, date and place, Plaintiff JOHN FANFAN, a High School student, advised P.O. PAGE and others that he was walking

home from a friends house and he didn't do anything. He gave them his friend's name and address, but he was ignored and said officers failed and refused to speak to his friend or go to his home located a short distance way. At the 113th Pct. the Plaintiff, JOHN FANFAN repeatedly advised P.O. PAGE, other officers and detectives thereat that they made a mistake, yet they continued to ignore Plaintiff and continued to yell false accusation that he stole the car. 2 NYCPD Detectives at the 113th Pct. pulled Plaintiff into a bathroom, forced JOHN FANFAN to remove his clothes and squat and conducted a strip search. Plaintiff was finger printed, mug shuts were taken. The Plaintiff was placed into a prison cell at the 113th Pct. for hours, until he was handcuffed to other prisoners and taken to Central Booking where he was placed into a cell, interviewed and mug shuts were taken. Thereafter, Plaintiff was removed to a boat prison, VCBC and falsely imprisoned for approximately 2 weeks. On approximately October 6, 2014, the Plaintiff was then removed and taken to Rikers Island until approximately November 19, 2014, when all charges against him were dismissed and he was released. (A copy of the District Attorney letter of Dismissal is annexed hereto and incorporated herein by reference; a copy of the false statement by PO Page dated 9/26/14 is annexed hereto). The Plaintiff, JOHN FANFAN was falsely imprisoned for approximately 56 days. During the aforesaid false imprisonment, the Plaintiff JOHN FANFAN was handcuffed, finger printed, photographed, frisked, incarcerated, and verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by PO Page and by unknown police officers/employees, detectives and agents of the NYCPD and 113th Pct., whose identities are presently unknown. The NYCPD, the NYCPD 113th Pct., PO Page and the said unidentified police officers of the 113th Pct., and detectives, their agents, and/or employees used excessive and unnecessary force, falsely imprisoned and falsely arrested the Plaintiff JOHN FANFAN and falsely accused him of being "a thief", stealing a car and other crimes and falsely arrested and

charged the Plaintiff JOHN FANFAN, falsely imprisoned him for 56 days and maliciously prosecuted him.

2. At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the civil rights of Plaintiff, JOHN FANFAN, the aforesaid P.O. Page, the unidentified NYC police officers and NYCPD, 113TH Pct., detectives and their agents and employees possessed information and knowledge that the claims and accusations against the Plaintiff JOHN FANFAN were false and without merit as Plaintiff JOHN FANFAN advised them, they ignored same, refused to conduct a proper and adequate investigation, and falsely arrested, imprisoned, abused the Plaintiff PO Page; and maliciously and falsely prosecuted the Plaintiff.

3. At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the civil rights of the Plaintiff, JOHN FANFAN, the aforesaid NYC police officers, detectives, NYCPD, 113TH Pct., and their agents and employees possessed information and knowledge that the claims and accusations against the Plaintiff JOHN FANFAN were false and without merit as Plaintiff JOHN FANFAN advised them. The aforesaid false arrest and imprisonment and denial of Civil Rights of the Plaintiff JOHN FANFAN was without probable cause to believe a crime was committed by JOHN FANFAN and there was never a warrant issued for his arrest.

4. The respondents CITY OF NEW YORK, P.O. PAGE AND NYCPD, their agents, servants and/or employees maliciously prosecuted the Plaintiff without cause, without evidence of the commission of a crime by Plaintiff, and with information and knowledge that they falsely arrested the Plaintiff, JOHN FANFAN and they falsely and mistakenly identified Plaintiff. On November 19, 2014 all charges against the Plaintiff JOHN FANFAN were dismissed (see Disposition Dismissal which is annexed hereto and incorporated herein by reference).

5. Plaintiff JOHN FANFAN was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by the NYCPD, 113TH PCT., P.O. PAGE and the aforesaid unidentified NYC police officers and detectives.

6. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 113th PCT., P.O. PAGE, the aforesaid Police Officers, Detectives, their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the Plaintiff; in failing to investigate; in falsely detaining, arresting and imprisoning the said Plaintiff in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident and 56 days of Plaintiff's incarceration; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the Plaintiff, JOHN FANFAN, for 56 days and deprivation of his civil rights; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said Plaintiff JOHN FANFAN; in that they failed to employ sufficient and adequate personnel and employees. That the CITY OF NEW YORK, the NYCPD and the NYCPD 113th PCT., Police Officers, their agents, servants and employees on and before November 19, 2014 and thereafter employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 113th PCT., and the aforesaid

police officers and detectives, of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force. The aforesaid actions and conduct by police officers and detectives of NYCPD, their false arrest and imprisonment of Plaintiff JOHN FANFAN, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, humiliating strip searches, their denial and refusing medical care to the Plaintiff after being beaten by prisoners at Rikers Island, failing to keep the Plaintiff safe, occurred pursuant to the practice of the NYCPD of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law.

The CITY OF NEW YORK, NYCPD and NYCPD 113th PCT., failed to adequately and properly train police officers of the 113th Pct., with a deliberate indifference to the Civil Rights of the Plaintiff JOHN FANFAN, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Police Officers, their agents, servants and/or employees deprived the said Plaintiff, of due process and violated his Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. PAGE, their agents, servants and/or employees maliciously assaulted and handcuffed the Plaintiff, verbally abused and humiliated and embarrassed the Plaintiff, JOHN FANFAN and defamed his character. Falsely arrested and imprisoned Plaintiff for 56 days and falsely and maliciously prosecuted Plaintiff. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. PAGE, THE 113TH PCT. the aforesaid officers, detectives, their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said Plaintiff, JOHN

FANFAN for 56 days; handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his family, and verbally physically and emotionally abused, defamed, humiliated and embarrassed this Plaintiff; and maliciously and falsely prosecuted him; all of which caused and inflicted serious injury and damage to the Plaintiff JOHN FANFAN, herein set forth.

7. Upon information and belief, on November 5, 2014, while the claimant, MARIE ISMENE FANFAN was away from her apartment at 134-39 166th Place, Apt. 1B, Queens, New York, NYC POLICE Officers of the 113th PCT., and/or other precincts without a warrant, unlawfully caused, permitted and allowed the lock on the door of her apartment to be broken, they entered same and conducted an illegal search. Thereafter, they caused, permitted and allowed without notification to the Plaintiff, MARIE ISMENE FANFA, a new lock to be installed, failed to provide a key to her, causing and resulting in plaintiff being rendered homeless and forced to live and sleep on the street until the next day. On November 6, 2014 claimant MARIE ISMENE FANFAN appeared at the 113th Pct. and she was falsely advised by an officer at the 113th Pct that her grandson, JOHN FANFAN was “no good” and he had “broken out of Rikers” and they had a warrant to search her apartment. Said claims and allegations, were untruthful, false, reckless, defamatory which were later confirmed by Sergeant Gonzalez at the 113th Pct, in a letter dated November 6, 2014, a copy of which is annexed to Plaintiff’s Notice of Claim, a copy of which is annexed hereto and incorporated herein by reference.

8. The aforesaid officers of the 113th Pct. violated The Civil Rights of claimant MARIE ISMENE FANFAN, forced her to live on the street homeless for one night, they humiliated

and defamed claimant at and to her housing Development Rochdale Village, the personnel and security thereat and her neighbors and friends caused her to be abused physically, psychologically and emotionally. (See Rochdale Village Inc. letter dated November 5, 2014 to said Notice of Claim).

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

9. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

10. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

11. That at all times herein mentioned, the plaintiffs were and still are residents of the County of Queens, City and State of New York.

12. Upon information and belief, that at all times herein mentioned, the defendants, NYC P.O. JOSEPH PAGE AND "JOHN DOES" NYCPD OFFICERS AND DETECTIVES OF THE 113TH PCT WHOSE NAMES ARE PRESENTLY UNKNOWN, were and still are residents of the State of New York.

13. Upon information and belief, that at all times herein mentioned, the defendants, NYC P.O. JOSEPH PAGE AND "JOHN DOES" NYCPD OFFICERS WHOSE NAMES ARE PRESENTLY UNKNOWN were employed by the Defendants CITY OF NEW YORK and/or NYCPD and their conduct and actions set forth in this Complaint were in the course of their employment and in their official and individual capacity.

14. That these plaintiffs have complied with all of the conditions precedent to the

Bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs have presented and served a Notice of Claim hereinafter mentioned upon the defendants on January 22, 2015 (a copy of which is annexed hereto and incorporated herein by reference) and more that thirty 30 days have elapsed since the presentation of said claims and the claims remain unadjusted and the defendants have failed and/or refused to make any adjustments of same.

15. That a 50H hearing was requested by the defendants and these plaintiffs appeared and gave testimony on June 18, 2015.

16. That this action is being commenced within one year and ninety days of the occurrence complained herein.

17. This action falls within one or more of the exceptions set forth in CPLR § 1602.

18. The defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYC P.O. JOSEPH PAGE AND "JOHN DOES" NYCPD POLICE OFFICERS AND DETECTIVES WHOSE NAMES ARE PRESENTLY UNKNOWN, their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its officers, agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the plaintiff JOHN FANFAN; in falsely detaining, arresting and imprisoning the Plaintiff in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incidents'; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the Plaintiff, JOHN FANFAN, for approximately 56 days, deprivation of his civil

rights; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, with a reckless disregard for the safety and welfare of said plaintiff JOHN FANFAN; in that they failed to employ sufficient and adequate personnel and employees. That the defendants the CITY of NEW YORK, the NYCPD and the NYCPD 113TH PCT., NYC P.O. JOSEPH PAGE AND “JOHN DOES” NYCPD POLICE OFFICERS, their agents, servants and employees on and before September 25, 2014 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 113TH Pct., and the Police officers of the 113TH Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias, physical force and a disregard for the health, welfare and safety of Plaintiff JOHN FANFAN herein. The aforesaid actions and conduct by defendants THE NEW YORK CITY POLICE DEPARTMENT 113TH Pct., NYC P.O. JOSEPH PAGE AND the “JOHN DOES” unidentified NYCPD police officers and detectives, their false arrest and imprisonment of Plaintiff JOHN FANFAN, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, the handcuffing and abusing this Plaintiff, occurred pursuant to the practice of the NYCPD AND THE 113TH Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 113TH PCT., failed to adequately and properly train the defendants the aforesaid NYC P.O. JOSEPH PAGE AND “JOHN DOES” unidentified NYCPD police officers and detectives, with a deliberate indifference to the Civil Rights of the Plaintiff JOHN FANFAN, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 113TH Pct., said NYC P.O. JOSEPH PAGE and “JOHN DOES”

NYCPD officers, their agents, servants and/or employees deprived the said plaintiff, JOHN FANFAN, of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. Defendant's THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYC P.O. JOSEPH PAGE AND "JOHEN DOES" UNIDENTIFIED NYCPD POLICE OFFICERS and DETECTIVES, their agents, servants and/or employees maliciously assaulted and handcuffed the plaintiff JOHN FANFAN, verbally abused, intimidated, threatened and humiliated and embarrassed the plaintiff JOHN FANFAN and defamed his character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees," NYC P.O. JOSEPH PAGE and other unidentified NYCPD officers wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said plaintiff, JOHN FANFAN, handcuffed him for extended amount of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him, denied him access to legal counsel and verbally, physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this Plaintiff; all of which caused and inflicted serious injury and damage to the plaintiff JOHN FANFAN, herein set forth.

19. That as a result of the aforesaid incident the infant plaintiff, JOHN FANFAN was caused to sustain serious and severe personal injuries.

20. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from multiple injuries, pain and distress, post traumatic stress disorder, emotional and psychological injury and damage, great indignity,

embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors, teachers and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and plaintiff was caused to incur and continues to incur expenses for medical attention and treatment.

21. That the said occurrence and the injuries and damages to the plaintiff, JOHN FANFAN, resulting there from was caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

22. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF, JOHN FANFAN**

23. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1 - 20 with the same force and effect as though the same were more fully set forth at length hereat.

24. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonably seizing and unlawfully arresting the plaintiff JOHN FANFAN, absent probable cause of criminal activity in violation of the Fourth and Fourteenth Amendments to the United States Constitution and without a warrant.

25. The Defendants, NYC P.O. JOSEPH PAGE AND "JOHN DOES" UNIDENTIFIED

NYC POLICE OFFICERS and DETECTIVES are liable, individually and in their official capacities, pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, handcuffing, seizing and unlawfully arresting and imprisoning the plaintiff, JOHN FANFAN, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

26. The defendants, their agents, servants and/or employees deprived the plaintiff, JOHN FANFAN of due process and violated his Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

27. This action falls within one or more of the exceptions set forth in CPLR § 1602.

28. That as a result of the defendants and their agents, servants and/or employees' aforesaid conduct, actions, negligence, carelessness and recklessness, the plaintiff JOHN FANFAN sustained and continues to suffer from post traumatic stress disorder, multiple injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

29. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an

amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

30. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-29 with the same force and effect as though the same were more fully set forth at length hereat.

31. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned the plaintiff JOHN FANFAN for approximately 30 hours, causing him severe personal injuries.

32. The Defendants NYC P.O. JOSEPH PAGE AND “JOHN DOES” UNIDENTIFIED NYC POLICE OFFICERS AND DETECTIVES, in their individual and official capacities are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the plaintiff, JOHN FANFAN in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

33. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the plaintiff JOHN FANFAN of his right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

34. This action falls within one or more of the exceptions set forth in CPLR § 1602.

35. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from post traumatic stress disorder, multiple bodily

injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

36. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

37. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-36 with the same force and effect as though the same were more fully set forth at length hereat.

38. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses against New York City public school students and the plaintiff, JOHN FANFAN, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

39. Defendants NYC P.O. JOSEPH PAGE AND UNIDENTIFIED NYC POLICE OFFICERS AND DETECTIVES are liable pursuant to 42 U.S.C. § 1983 for abuses against the plaintiff, JOHN FANFAN, depriving him of substantive due process that shocks the conscience

in violation of the Fourteenth Amendment to the United States Constitution.

40. This action falls within one or more of the exceptions set forth in CPLR § 1602.

41. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

42. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

43. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-42 with the same force and effect as though the same were more fully set forth at length hereat.

44. By their actions, as set forth in this complaint and exhibits annexed, the defendants, their agents, servants and/or employees, in their official and individual capacities,

acted under color of State Law to deprive the plaintiff, JOHN FANFAN of his right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

45. This action falls within one or more of the exceptions set forth in CPLR § 1602.

46. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

47. That by reason of the foregoing, the infant plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

48. Plaintiffs repeat and reiterates and realleges each and every allegation

contained in the paragraphs 1-47 with the same force and effect as though the same were more fully set forth at length hereat.

49. The Defendants, NYC P.O. JOSEPH PAGE AND “JOHN DOES” UNIDENTIFIED NYC POLICE OFFICERS and DETECTIVES are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the plaintiff, JOHN FANFAN.

50. This action falls within one or more of the exceptions set forth in CPLR § 1602.

51. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

52. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

53. Plaintiffs repeat and reiterates and realleges each and every allegation

contained in the paragraphs 1-52 with the same force and effect as though the same were more fully set forth at length hereat.

54. The Defendants, CITY OF NEW YORK and NYCPD are liable for the false arrest of New York City public school children and students and the plaintiff, JOHN FANFAN in particular, in violation of New York Law.

55. The Defendants, NYC P.O. JOSEPH PAGE AND "JOHN DOES" UNIDENTIFIED NYC POLICE OFFICERS AND DETECTOVES are liable for the false arrest of the plaintiff, JOHN FANFAN in violation of New York State law.

56. This action falls within one or more of the exceptions set forth in CPLR § 1602.

57. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

58. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

59. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-58 with the same force and effect as though the same were more fully set forth at length hereat.

60. The Defendants, CITY OF NEW YORK and NYCPD are liable for the assault and battery of the plaintiff, JOHN FANFAN in particular, in violation of New York Law.

61. The Defendants, NYC P.O. JOSEPH PAGE AND “JOHN DOES” UNIDENTIFIED NYC POLICE OFFICERS AND DETECTIVES are liable for the assault and battery of the plaintiff, JOHN FANFAN in violation of New York State law.

62. This action falls within one or more of the exceptions set forth in CPLR § 1602.

63. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

64. That by reason of the foregoing, the infant plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

65. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-64 with the same force and effect as though the same were more fully set forth at length hereat.

66. That all accusations and charges against the plaintiff, JOHN FANFAN was false which was at all times known to the defendants, their agents, servants and/or employees.

67. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously prosecuted the plaintiff, JOHN FANFAN and as a result of defendants abuse of process, the plaintiff JOHN FANFAN was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body, post traumatic stress disorder and suffered injury and damage and defamation of his good name and reputation in the community, among his friends, neighbors, teaches and others.

68. This action falls within one or more of the exceptions set forth in CPLR § 1602.

69. That as a result of the aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and

reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

70. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOHN FANFAN**

71. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-70 with the same force and effect as though the same were more fully set forth at length hereat.

72. As a result of the defendants and their agents, servants and/or employees' aforesaid intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this complaint, the plaintiff, JOHN FANFAN claims punitive damages against the defendants.

73. This action falls within one or more of the exceptions set forth in CPLR § 1602.

74. That as a result of the defendants aforesaid conduct, intentional, willful actions, gross negligence, gross carelessness and gross recklessness of the defendants, their agents, servants and/or employees the plaintiff JOHN FANFAN sustained and continues to suffer from multiple post traumatic stress disorder, bodily injuries, pain and distress, emotional and psychological injury and

damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff JOHN FANFAN was caused to incur and continues to incur expenses for medical attention and treatment.

75. That by reason of the foregoing, the plaintiff, JOHN FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF MARIE ISMENE FANFAN**

76. Plaintiff repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-75 with the same force and effect as though the same were more fully set forth at length hereat.

77. That the Defendants, their agents, servants and/or employees unlawfully, intentionally, willfully and deliberately, without a warrant conducted an illegal search, locked the Plaintiff MARIE ISMENE FANFAN a grandmother out of her home, forced her to sleep on the street; they denied and violated the Civil Rights of this Plaintiff; humiliated and defamed this plaintiff.

78. The plaintiff MARIE ISMENE FANFAN sustained and continues to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of due process and her

Civil Rights guaranteed under the Constitution of the United States of America and the State of New York, as well as the Civil rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of American/Federal Government.

79. That by reason of the forgoing, plaintiff MARIE ISMENE FANFAN, has been damaged in a sum which exceeds the jurisdictional limits of all lower costs which would otherwise have jurisdiction and this plaintiff further claim punitive damages against the defendants as a result of their intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this Complaint.

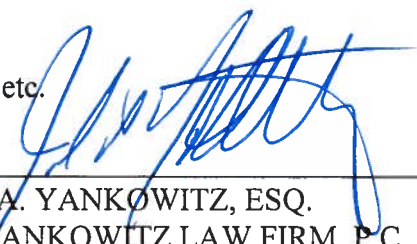
80. This action falls within one or more of the exceptions set forth in CPLR § 1602.

81. That by reason of the foregoing, the plaintiff, MARIE ISMENE FANFAN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction and punitive damages against the defendants.

WHEREFORE, plaintiffs demand judgment against the defendants on the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH, SEVENTH, EIGHTH, NINETH, TENTH AND ELEVENTH, CAUSES OF ACTION, for damages in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction in all Actions, together with costs, attorney fees and disbursements of these actions.

Dated: Great Neck, New York
August 25, 2015

Yours, etc.



JACK A. YANKOWITZ, ESQ.
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff(s)
JOHN FANFAN AND MARIE ISMENE FANFAN
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 7975 -14

NOTICE OF CLAIM

-----X

In the Matter of the Claim of

JOHN FANFAN and
MARIE ISMENE FANFAN

- against -

THE CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT,
THE NEW YORK CITY POLICE DEPARTMENT 113th PRECINCT
N.Y.C. P.O. JOSEPH PAGE AND OTHER "JOHN DOES"
OFFICERS AND DETECTIVES OF AND AT THE 113th PCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

-----X

TO: Comptroller of the City of New York
Municipal Building •
New York, New York 100016
And/or
100 Church Street
New York, NY 100016

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10013

NEW YORK CITY POLICE DEPARTMENT 113TH PRECINCT
UNIDENTIFIED POLICE OFFICERS AND DETECTIVES OF THE 113TH PCT.
NYC P.O. JOSEPH PAGE (TAX REG. # 955288)
167-02 Baisley Blvd.
Jamaica, NY 11426

PLEASE TAKE NOTICE that the undersigned claimant hereby makes claim and demands against you as follows:

1. Name and post office address of each claimant and claimant's attorneys is:

2015 JAN 22 AM 11:06
CITY OF N.Y. LAW DEPT.
OFFICE OF CORP. COUNSEL
COMMUNICATIONS UNIT

Claimant

JOHN FANFAN
134 -39 166th Place
Jamaica, NY 11434

MARIE ISMENE FANFAN

134 -39 166th Place
Jamaica, NY 11434

Attorney

THE YANKOWITZ LAW FIRM, P.C.
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

2. Nature of Claim:

The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and false imprisonment, assault and battery, malicious prosecution and all damages permitted by Statute and Case Law, incurred by and on behalf of claimant JOHN FANFAN, by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. PAGE and police officers and detectives of the NYCPD 113th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees and punitive damages by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, and the gross negligence, gross carelessness and gross recklessness, intentional, willful and malicious acts committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NYC P.O. JOSEPH PAGE and "JOHN DOES" officers and detectives, of the NYCPD 113th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees.

To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, and all damages permitted by Statute and Case Law, incurred by and on behalf of claimant MARIE ISMENE FANFAN, and punitive damages, by reason of the gross negligence, gross carelessness and gross recklessness willful malicious and intentional acts committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NYCPD 113th Pct. and P.O. PAGE, "JOHN DOES" representing various NYCPD Officers and Detectives whose names and identities are presently unknown, and their agents, servants and/or employees.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, on September 25, 2014 at approximately 9:35 PM while the claimant, JOHN FANFAN was walking home from a friends house, at and/or near 137 Guy Brewer Blvd., Rochdale Village, Queens, New York. At said time, date and place, the claimant, JOHN FANFAN, was falsely accused of stealing a car and other crimes by NYC P.O. JOSEPH PAGE and other unidentified NYC Police Officers and Detectives and he was arrested, handcuffed, placed into a police vehicle and taken to the 113th Pct. At said time,

date and place, claimant JOHN FANFAN, a High School student, advised P.O. PAGE and others that he was walking home from a friends house and he didn't do anything. He gave them his friend's name and address, but he was ignored and said officers failed and refused to speak to his friend or go to his home located a short distance way. At the 113th Pct. the claimant, JOHN FANFAN repeatedly advised P.O. PAGE, other officers and detectives thereat that they made a mistake, yet they continued to ignore claimant and continued to yell false accusation that he stole the car. 2 NYCPD Detectives at the 113th Pct. pulled claimant into a bathroom, forced JOHN FANFAN to remove his clothes and squat and conducted a strip search. Claimant was finger printed, mug shuts were taken. The claimant was placed into a prison cell at the 113th Pct. for hours, until he was handcuffed to other prisoners and taken to Central Booking where he was placed into a cell, interviewed and mug shuts were taken. Thereafter, claimant was removed to a boat prison, VCBC and falsely imprisoned for approximately 2 weeks. On approximately October 6, 2014, the claimant was then removed and taken to Rikers Island until approximately November 19, 2014, when all charges against him were dismissed and he was released. (A copy of the District Attorney letter of Dismissal is annexed hereto and incorporated herein by reference; a copy of the false statement by PO Page dated 9/26/14 is annexed hereto). The claimant, JOHN FANFAN was falsely imprisoned for approximately 56 days. During the aforesaid false imprisonment, the claimant JOHN FANFAN was handcuffed, finger printed, photographed, frisked, incarcerated, and verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by PO Page and by unknown police officers/employees, detectives and agents of the NYCPD and 113th Pct., whose identities are presently unknown. The NYCPD, the NYCPD 113th Pct., PO Page and the said unidentified police officers of the 113th Pct., and detectives, their agents, and/or employees used excessive and unnecessary force, falsely imprisoned and falsely arrested the claimant JOHN FANFAN and falsely accused him of being "a thief", stealing a car and other crimes and falsely arrested and charged the Claimant JOHN FANFAN, falsely imprisoned him for 56 days and maliciously prosecuted him.

At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the civil rights of claimant, JOHN FANFAN, the aforesaid P.O. Page, the unidentified NYC police officers and NYCPD, 113TH Pct., detectives and their agents and employees possessed information and knowledge that the claims and accusations against the Claimant JOHN FANFAN were false and without merit as Claimant JOHN FANFAN advised them, they ignored same, refused to conduct a proper and adequate investigation, and falsely arrested, imprisoned, abused the claimant PO Page; and maliciously and falsely prosecuted the claimant.

At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the civil rights of the claimant, JOHN FANFAN, the aforesaid NYC police officers, detectives, NYCPD, 113TH Pct., and their agents and employees possessed information and knowledge that the claims and accusations against the claimant JOHN FANFAN were false and without merit as claimant JOHN FANFAN advised them. The aforesaid false arrest and imprisonment and denial of Civil Rights of the claimant JOHN FANFAN was without probable cause to believe a crime was committed by JOHN FANFAN and there was never a warrant issued for his arrest.

The respondents CITY OF NEW YORK, P.O. PAGE AND NYCPD, their agents, servants and/or employees maliciously prosecuted the claimant without cause, without evidence of the commission of a crime by claimant, and with information and knowledge that they falsely arrested the claimant, JOHN FANFAN and they falsely and mistakenly identified claimant. On November 19, 2014 all charges against the claimant JOHN FANFAN were dismissed (see Disposition Dismissal which is annexed hereto and incorporated herein by reference).

Claimant JOHN FANFAN was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by the NYCPD, 113TH PCT., P.O. PAGE and the aforesaid unidentified NYC police officers and detectives.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 113th PCT., P.O. PAGE, the aforesaid Police Officers, Detectives, their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the claimant; in failing to investigate; in falsely detaining, arresting and imprisoning the said claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident and 56 days of claimant's incarceration; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the claimant, JOHN FANFAN, for 56 days and deprivation of his civil rights; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said claimant JOHN FANFAN; in that they failed to employ sufficient and adequate personnel and employees. That the CITY OF NEW YORK, the NYCPD and the NYCPD 113th PCT., Police Officers, their agents, servants and employees on and before November 19, 2014 and thereafter employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 113th PCT., and the aforesaid police officers and detectives, of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force. The aforesaid actions and conduct by police officers and detectives of NYCPD, their false arrest and imprisonment of claimant JOHN FANFAN, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, humiliating strip searches, their denial and refusing medical care to the claimant after being beaten by prisoners at Rikers Island, failing to keep the claimant safe, occurred pursuant to the practice of the NYCPD of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 113th PCT., failed to adequately and properly train police officers of the 113th Pct., with a deliberate indifference to the Civil Rights of the claimant JOHN FANFAN, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Police Officers, their agents, servants and/or

employees deprived the said claimant, of due process and violated his Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. PAGE, their agents, servants and/or employees maliciously assaulted and handcuffed the claimant, verbally abused and humiliated and embarrassed the claimant, JOHN FANFAN and defamed his character. Falsely arrested and imprisoned claimant for 56 days and falsely and maliciously prosecuted claimant. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. PAGE, THE 113TH PCT. the aforesaid officers, detectives, their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said claimant, JOHN FANFAN for 56 days; handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his family, and verbally physically and emotionally abused, defamed, humiliated and embarrassed this claimant; and maliciously and falsely prosecuted him; all of which caused and inflicted serious injury and damage to the claimant JOHN FANFAN, herein set forth.

4. Upon information and belief, the claim of MARIE ISMENE FANFAN arose on November 5, 2014, the time presently unknown, while the claimant, MARIE ISMENE FANFAN was away from her apartment at 134-39 166th Place, Apt. 1B, Queens, New York. Upon information and belief, at said date and place, NYC POLICE Officers of the 113th PCT., and/or other precincts without a warrant, unlawfully caused, permitted and allowed the lock on the door of her apartment to be broken, they entered same and conducted an illegal search. Thereafter, they caused, permitted and allowed without notification to claimant, MARIE ISMENE FANFA, a new lock to be installed, failed to provide a key to her, causing and resulting in claimant being rendered homeless and forced to live and sleep on the street until the next day. On November 6, 2014 claimant MARIE ISMENE FANFAN appeared at the 113th Pct. and she was falsely advised by an officer at the 113th Pct that her grandson, JOHN FANFAN was "no good" and he had "broken out of Rikers" and they had a warrant to search her apartment. Said claims and allegations, were untruthful, false, reckless, defamatory which were later confirmed by Sergeant Gonzalez at the 113th Pct, in a letter dated November 6, 2014, a copy of which is annexed hereto and incorporated herein by reference. The aforesaid officers of the 113th Pct. violated The Civil Rights of claimant MARIE ISMENE FANFAN, forced her to live on the street homeless for one night, they humiliated and defamed claimant at and to her housing Development Rochdale Village, the personnel and security thereat and her neighbors and friends caused her to be abused physically, psychologically and emotionally. (See Rochdale Village Inc. letter dated November 5, 2014 annexed hereto and incorporated herein by reference).

5. The Claimant JOHN FANFAN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community, in his school, and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution

of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment and legal counsel. The claimant, JOHN FARFAN, has suffered damages in the sum of TWENTY FIVE MILLION DOLLARS (\$25,000,000.00).

Claimant JOHN FANFAN further claims punitive damages in the amount of TWENTY FIVE MILLION (\$25,000,000.00) DOLLARS as a result of the aforesaid, gross recklessness and gross negligence, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the claimant and the aforesaid malicious prosecution and deprivation of the Civil and Constitutional Rights of the claimant, JOHN FANFAN by THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 113th Pct., P.O. JOSEPH PAGE, their agents, servants and employees.

6. The Claimant MARIE ISMENE FANFAN sustained and continues to suffer from pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community, and among her family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment. The claimant, MARIE ISMENE FANFAN, has suffered damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

Claimant MARIE ISMENE FANFAN further claims punitive damages in the amount of TEN MILLION (\$10,000,000.00) DOLLARS as a result of the aforesaid gross recklessness and gross negligence, concerted, conspired, wanton, willful and intentional physical, verbal, emotional and psychological abuse inflicted upon the claimant and the aforesaid malicious deprivation of the Civil and Constitutional Rights of the claimant, MARIE ISMENE FANFAN by THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 113th Pct., P.O. JOSEPH PAGE, their agents, servants and employees.

The undersigned, on behalf of the claimants therefore presents these claims for adjustment and payment. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
January 20, 2015


JACK A. YANKOWITZ

THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimants
JOHN FANFAN AND MARIE ISMENE FANFAN
175 East Shore Road
Great Neck, New York 11023
(516) 829-4300

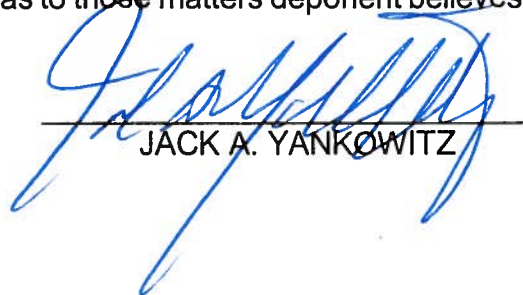
VERIFICATION

STATE OF NEW YORK}

ss.:

COUNTY OF NASSAU}

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimant; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.



JACK A. YANKOWITZ

Sworn to before me on
January 20, 2015



NOTARY PUBLIC

ANDREW S. KOENIG
Notary Public, State of New York
No. 01KO6043885
Qualified in Nassau County

Commission Expires June 26, 20 18

OFFICE OF THE DISTRICT ATTORNEY
THE COUNTY OF QUEENS

GRAND JURY BUREAU
125-01 QUEENS BLVD.
QUEENS, N.Y. 11415

JOHN FANFAN
134-39 166 PLACE
1B
JAMAICA, NY 11434

GJ CASE NO. 2731/2014

DOCKET NOS. 2014QN056481

PLEASE BE ADVISED THAT ON NOVEMBER 19, 2014, A MATTER
PENDING BEFORE THE GRAND JURY OF THE COUNTY OF QUEENS ENTITLED
PEOPLE VS. JOHN FANFAN WAS DISMISSED BY THE GRAND JURY.

ASSISTANT DISTRICT ATTORNEY
BUREAU CHIEF - GRAND JURY

APR 16 1994 0611608

Q14659970

QUEENS TREATMENT COURT
ELIGIBLE

CRIMINAL COURT OF THE CITY OF NEW YORK
PART APAR, COUNTY OF QUEENS

THE PEOPLE OF THE STATE OF NEW YORK

V.

JOHN FANFAN (19Y)

DEFENDANT

STATE OF NEW YORK
COUNTY OF QUEENS

2014QN056481



POLICE OFFICER JOSEPH PAIGE OF PATROL BORO QUEENS SOUTH, TAX REG#: 955288, BEING DULY SWORN, DEPOSES AND SAYS THAT ON OR ABOUT SEPTEMBER 25 2014 BETWEEN 9:30PM AND 9:40PM, AT THE NW INTERSECTION OF 137 AVENUE AND GUY R. BREWER BOULEVARD, COUNTY OF QUEENS, STATE OF NEW YORK THE DEFENDANT COMMITTED THE OFFENSES OF:

PL 165.45-5 [EF] CRIMINAL POSSESSION OF STOLEN PROPERTY IN THE FOURTH DEGREE - (DNA SAMPLE REQUIRED UPON CONVICTION)
PL 155.25 [AM] PETIT LARCENY - (DNA SAMPLE REQUIRED UPON CONVICTION) (2 COUNTS)
PL 165.40 [AM] CRIMINAL POSSESSION OF STOLEN PROPERTY IN THE FIFTH DEGREE - (DNA SAMPLE REQUIRED UPON CONVICTION)
PL 221.10-1 [BM] CRIMINAL POSSESSION OF MARIHUANA IN THE FIFTH DEGREE - (DNA SAMPLE REQUIRED UPON CONVICTION, IF THE PERSON HAS A PRIOR CONVICTION OF A CRIME)
VTL 1229-C-3 [V] OPERATION OF VEHICLES WITHOUT SAFETY SEATS AND SAFETY BELTS

PL 165.45-5 [EF] CRIMINAL POSSESSION OF STOLEN PROPERTY IN THE FOURTH DEGREE - (DNA SAMPLE REQUIRED UPON CONVICTION)
--- KNOWINGLY POSSESS STOLEN PROPERTY, EXCEEDING ONE HUNDRED DOLLARS IN VALUE AND CONSISTING OF A MOTOR VEHICLE, AS DEFINED IN SECTION ONE HUNDRED TWENTY FIVE OF THE VEHICLE AND TRAFFIC LAW, OTHER THAN A MOTORCYCLE, AS DEFINED IN SECTION ONE HUNDRED TWENTY-THREE OF SUCH LAW, WITH INTENT TO BENEFIT HIMSELF OR A PERSON OTHER THAN THE OWNER THEREOF OR TO IMPEDE THE RECOVERY BY THE OWNER THEREOF;

PL 155.25 [AM] PETIT LARCENY - (DNA SAMPLE REQUIRED UPON CONVICTION) (2 COUNTS)
--- KNOWINGLY AND UNLAWFULLY STEAL THE PROPERTY OF ANOTHER;

PL 165.40 [AM] CRIMINAL POSSESSION OF STOLEN PROPERTY IN THE FIFTH DEGREE - (DNA SAMPLE REQUIRED UPON CONVICTION)
--- KNOWINGLY POSSESS STOLEN PROPERTY WITH INTENT TO BENEFIT HIMSELF OR A PERSON OTHER THAN THE OWNER THEREOF, OR TO IMPEDE THE RECOVERY BY AN OWNER THEREOF;

0002/004

SEP 26 2014 03:39PM

EX: 17187125429

PL 221.10-1 [BM] CRIMINAL POSSESSION OF MARIHUANA IN THE FIFTH DEGREE -
(DNA SAMPLE REQUIRED UPON CONVICTION, IF THE PERSON HAS A PRIOR
CONVICTION OF A CRIME)
--- KNOWINGLY AND UNLAWFULLY POSSESS MARIHUANA IN A PUBLIC PLACE
AS DEFINED IN SECTION 240.00 OF THE PENAL LAW, AND SUCH MARIHUANA
WAS BURNING OR OPEN TO PUBLIC VIEW;
VTL 1229-C-3 [V] OPERATION OF VEHICLES WITHOUT SAFETY SEATS AND SAFETY
BELTS
--- OPERATE A MOTOR VEHICLE WITHOUT BEING RESTRAINED BY A SAFETY
BELT WHICH HAS BEEN APPROVED BY THE COMMISSIONER.
THE ABOVE OFFENSES WERE COMMITTED AS FOLLOWS:
DEPONENT STATES THAT ON THE ABOVE MENTIONED TIME, DATE AND PLACE OF
OCCURRENCE, HE OBSERVED THE DEFENDANT, JOHN FANFAN, DRIVING A 2003
GRAY NISSAN ALTIMA WITHOUT WEARING A SEATBELT ALONG WITH ONE
UNAPPREHENDED MALE SITTING IN THE FRONT PASSENGER SEAT OF SAID VEHICLE.
DEPONENT FURTHER STATES THAT UPON STOPPING THE ABOVE MENTIONED
VEHICLE, THE DEFENDANT AND SAID UNAPPREHENDED MALE EXITED AND FLED FROM
SAID VEHICLE.
DEPONENT FURTHER STATES THAT HE RECOVERED KEYS FROM THE IGNITION OF SAID
VEHICLE AND (1) ONE MARIJUANA CIGARETTE AND (1) ONE PIPE CONTAINING A
QUANTITY OF MARIJUANA FROM THE CENTER CONSOLE OF SAID VEHICLE.
DEPONENT STATES THAT HE IS INFORMED BY THE COMPLAINANT, RAJENDRA
BUDHRAM, THAT ON SEPTEMBER 23, 2014 AT APPROXIMATELY 7:00PM, HE OBSERVED
THAT HIS 2003 GRAY NISSAN ALTIMA WAS PARKED AT THE INTERSECTION OF 92
AVENUE AND 196 STREET, QUEENS COUNTY AND THAT HIS IPOD WAS INSIDE OF THE
CENTER CONSOLE OF HIS VEHICLE.
DEPONENT IS FURTHER INFORMED BY THE COMPLAINANT THAT ON SEPTEMBER 24,
2014 AT APPROXIMATELY 6:00AM THAT HE OBSERVED THAT HIS 2003 GRAY
NISSAN ALTIMA WAS MISSING FROM THE INTERSECTION OF 92 AVENUE AND 196
STREET, QUEENS COUNTY.
DEPONENT IS FURTHER INFORMED BY THE COMPLAINANT THAT ON SEPTEMBER 26,
2014 WHILE AT THE 113 PRECINCT HE OBSERVED THAT HIS IPOD WAS MISSING
FROM HIS VEHICLE.
DEPONENT FURTHER STATES THAT THE COMPLAINANT IDENTIFIED SAID KEYS AS
HIS PROPERTY.
DEPONENT IS FURTHER INFORMED BY THE COMPLAINANT THAT THE VALUE OF HIS
2003 NISSAN VEHICLE IS IN EXCESS OF \$100 UNITED STATES CURRENCY.
DEPONENT IS FURTHER INFORMED BY THE COMPLAINANT THAT HE IS THE LEGAL
CUSTODIAN OF THE ABOVE MENTIONED KEYS, IPOD AND NISSAN VEHICLE AND
THAT THE DEFENDANT DID NOT HAVE PERMISSION OR AUTHORITY TO TAKE, REMOVE,
USE, OR OTHERWISE EXERCISE CONTROL OVER SAID PROPERTY.

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AFF701994611608

FANFAN, JOHN Q14659970

DEPONENT FURTHER STATES THAT HIS CONCLUSION THAT THE SUBSTANCE RECOVERED IS: MARIJUANA IS BASED UPON HIS EXPERIENCE AS A POLICE OFFICER AND IN HIS TRAINING IN THE IDENTIFICATION AND PACKAGING OF CONTROLLED SUBSTANCES AND MARIJUANA.

FALSE STATEMENTS MADE IN THIS DOCUMENT ARE PUNISHABLE AS A CLASS A MISDEMEANOR PURSUANT TO SECTION 210.45 OF THE PENAL LAW

9/26/14
DATE SIGNATURE

SWORN TO BEFORE ME ON THE
DAY OF

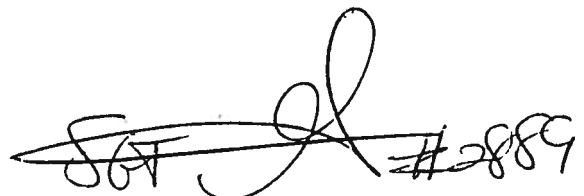
DATE SIGNATURE

November 6, 2014

Sergeant Jo-Ann Gonzalez
Community Affairs Unit
NYPD 113th Precinct
167-02 Baisley Blvd
Jamaica, NY 11434

Chief Thomas Mason,

This letter is to verify that Ms. Ismane Fanfan was not a subject to yesterdays warrant execution at 134-39 166 Pl. Apt 1B. Any further questions please contact me @646-372-4525.

A handwritten signature in black ink, appearing to read "SAT" followed by a large stylized flourish and the number "#2889".

Jo-Ann Gonzalez
Sergeant

ROCHDALE VILLAGE, INC.

A HOUSING DEVELOPMENT COOPERATIVELY OWNED AND OPERATED



MANAGEMENT OFFICE
169-65 137th AVENUE
JAMAICA, N.Y. 11434
TEL.: (718) 276-5700

SECURITY OFFICE
169-65 137th AVENUE
JAMAICA, N.Y. 11434
TEL.: (718) 276-2400

MAINTENANCE OFFICE
169-55 137th AVENUE
JAMAICA, N.Y. 11434
TEL.: (718) 276-5610

Code No. _____

DATE: 11. 9. 14

Building: 18 Section: A Aptartment: 1B

Dear Co-operator:

Due to an emergency situation we had to enter your apartment without your being there or your permission, for the following reason (s): ARREST WARRANT; QUEEN
WARRANT SIGNED.

SPECIAL INSTRUCTIONS: PICK UP YOUR NEW KEYS AT PUBLIC
SAFETY.

SIGNATURES/DEPARTMENT OF PERSONS ENTERING:

W. J. [Signature]
ADMINISTRATIVE / SECTION

Locksmith
PUBLIC SAFETY

If you have any questions regarding this matter, please contact the Management Office.

MSI

Marion Scott Real Estate, Inc. 2104 1st Avenue - New York, N.Y. 10029 - (212) 876-6800

NOTICE OF CLAIM

-----X

In the Matter of the Claim of

JOHN FANFAN and
MARIE ISMENE FANFAN

- against -

THE CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT,
THE NEW YORK CITY POLICE DEPARTMENT 113th PRECINT
N.Y.C. P.O. JOSEPH PAGE AND OTHER "JOHN DOES"
OFFICERS AND DETECTIVES OF AND AT THE 113th PCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

-----X

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for CLAIMANTS

175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

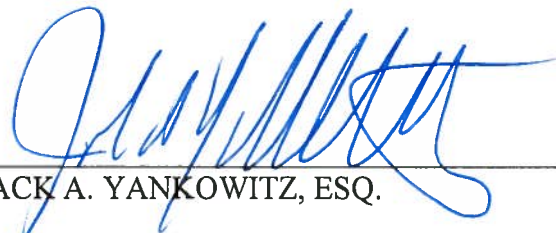
TO:

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff(s), John Fanfan and Marie Ismene Fanfan. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Great Neck, New York
August 25, 2015



JACK A. YANKOWITZ, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

JOHN FANFAN and MARIE ISMENE FANFAN,

Plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK
CITY POLICE DEPARTMENT 113th PRECINCT, N.Y.C. P.O. JOSEPH PAGE and OTHER
“JOHN DOES” OFFICERS AND DETECTIVES OF AND AT THE 113th PCT WHOSE
NAMES AND IDENTITIES ARE PRESENTLY UNKNOWN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.
Attorneys for PLAINTIFFS
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

TO: